

7	Matassa vs. Ramirez 2025-01514585	Motion for Preference <i>Continued to 7/23/26. See minute order dated 6/8/26.</i>
8	Mercedes-Benz Vehicle Trust, a Delaware statutory trust, successor by merger to Daimler Trust vs. Williams 2024-01448690	Demurrer to Cross-Complaint Plaintiff/Cross-Defendant Mercedes-Benz Vehicle Trust, successor by merger to Daimler Trust, as serviced by its attorney in fact, Mercedes-Benz Financial Services USA, LLC's ("Cross-Defendant") demurrer to Defendant/Cross-Complainant Cylinder Enterprises, Inc. dba Finish Line Towing & Transport's ("Cross-Complainant") Cross-Complaint is SUSTAINED. (Code Civ. Proc. §430.10, subd. (e).) Cross-Complainant may file a First Amended Cross-Complaint within 20 days of this ruling to address the pleading deficiencies identified below. Cross-Defendant has established compliance with Code Civ. Proc. §430.41. (See Caley Decl. ¶8 [telephonic meet and confer on 4/14/26].) Cross-Defendant's Request for Judicial Notice is GRANTED in PART. (Evid. Code §452, subd. (c).) The Court takes judicial notice of Exhibit "5" of Plaintiff's Verified Complaint. (ROA 2 at pp. 26-27.) Exhibit "5" is a notice of application for lien sale regarding the subject vehicle generated by the California Department of Motor Vehicles on 12/27/23. This document is subject to judicial notice under Evidence Code section 452, subdivision (c) because it is an official act of an executive department of the State of California. Accordingly, the Court takes judicial notice of the fact that the Department of Motor Vehicles sent the notice pursuant to Civil Code section 3071, subdivision (b) on December 27, 2023. The Request for Judicial Notice is DENIED to the extent Moving Party seeks the court to take judicial notice of the truth of any allegations of the Verified Complaint. <u>Meet and Confer</u> Defendant complied with the requirements of Code Civil Procedure section 430.41, subdivision (a)(1). Defendant submits the declaration of Rebecca Caley which provides that the parties engaged in a telephonic meet and confer on 4/14/26 and were unable to resolve the issues raised in the demurrer and motion to strike. (See Caley Decl. ¶8.)

General Standard on Demurrer

In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-05.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.)

Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).)

First Cause of Action: Enforcement of Statutory Lien for Towing and Storage Charges

Cross-Complainant's First Cause of Action alleges that Cross-Defendant failed to timely object to its Application for lien sale pursuant to Civil Code section 3071. Cross-Complainant alleges that Cross-Defendant "procured" a denial of Cross-Complainant's application to conduct the lien sale by submitting its opposition to the application seventy-two days after the deadline had passed. Cross-Complainant reasons that Cross-Defendant should be held liable for "a misuse of the statutory scheme in bad faith."

The allegations of the Cross-Complaint and the judicially noticeable fact that the DMV sent the notice of lien sale pursuant to Civil Code section 3071, subdivision (b) on 12/27/23 show that Cross-Complaint's lien cannot be enforced.

Cross-Complainant's alleged lien arises from towing and storage of the subject vehicle pursuant to a request by the California Highway Patrol to remove the subject vehicle from public property. (See X-Compl. ¶¶ 9, 11.) Accordingly, Cross-Complainant's lien on the subject vehicle was governed by Civil Code section 3068.1. Pursuant to Civil Code section 3068.1, subdivision (c), "the lien shall be satisfied pursuant to Section

	3071. The storage lien may be for a period not exceeding 120 days if an application for an authorization to conduct a lien sale has been filed pursuant to Section 3071.” Cross-Complainant alleges that it filed an application for authorization to conduct a lien sale pursuant to Civil Code section 3071, subdivision (a) on 10/25/23. (See X-Compl. ¶11 and Ex. A.) Cross-Complainant alleged its lien consisted of \$480 for towing, \$440 for storage and a daily rate of \$97.50 for ongoing storage of the subject vehicle. (X-Compl. ¶13.) Pursuant to Civil Code section 3071, subdivision (b), “[u]pon receipt of an application made pursuant to subdivision (a), the department shall do all of the following: (1) Notify the vehicle registry agency of a foreign state of the pending lien sale, if the vehicle bears indicia of registration in that state. (2) By certified mail, send a notice, a copy of the application, and a return envelope preaddressed to the department to the registered and legal owners at their addresses of record with the department, and to any other person whose name and address is listed in the application.” Pursuant to Civil Code section 3071, subd. (c)(3), a recipient of this notice may submit “a Declaration of Opposition form ... to the department within 10 days of the date that the notice required pursuant to subdivision (b) was mailed.” If a declaration of opposition is timely provided to the Department of Motor Vehicles, Civil Code section 3071, subdivision (d) requires that “the department shall notify the lienholder within 16 days of the receipt of the form that a lien sale shall not be conducted unless the lienholder files an action in court within 30 days of the department’s notice under this subdivision. A lien sale of the vehicle shall not be conducted unless judgment is subsequently entered in favor of the lienholder or the declarant subsequently releases his or her interest in the vehicle...” Cross-Complainant alleges that the Department of Motor Vehicles issued a Notice of Declaration of Opposition pursuant to Civil Code section 3071, subdivision (d) on 1/17/24. (See X-Compl. ¶16, Ex. B.) Cross-Complainant alleges that Cross-Defendant did not timely submit a declaration of opposition to the Department of Motor Vehicles. This allegation, however, is nothing more than an unsupported legal conclusion. Cross-Defendant has requested judicial notice be taken of the fact that the “notice required pursuant to subdivision (b)” was sent by the Department on
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	12/27/23. Therefore, the service of the declaration of opposition is timely under Civil Code section 3071, subdivision (d). Since this Cross-Action was filed more than 30 days from the date the Department sent Cross-Complainant notice of the declaration of opposition, the time for Cross-Complainant to file an action in court to enforce the lien (and dispute the declaration of opposition) has long passed. Accordingly, there is no possible relief Cross-Complainant could obtain under Civil Code section 3071 based upon the allegations of the Complaint. The demurrer is sustained with leave to amend. <i>Second Cause of Action: Account Stated</i> “The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due.” (<i>Leighton v. Forster</i> (2017) 8 Cal.App.5th 467, 491. [citing <i>Zinn v. Fred R. Bright Co.</i> (1969) 217 Cal.App.2d 597, 600].) The Cross-Complaint fails to allege any of these elements. Furthermore, as Cross-Defendant argues, Cross-Complainant’s exclusive remedy as it pertains to Cross-Defendant is the enforcement of its possessory lien under Civil Code section 3071. (See Veh. Code, § 22851.4.) <i>Third Cause of Action: Common Counts</i> Cross-Complainant’s Third Cause of Action is labeled as “common counts”, but pursuant to X-Compl. ¶46, this is a cause of action for open book. The elements of a claim for open book are (1) that the plaintiff and defendant had financial transactions; (2) that the plaintiff kept an account of the debits and credits involved in the transactions; (3) that the defendant owes the plaintiff money on the account, and (4) the amount of money that the defendant owes the plaintiff. (<i>State Compensation Insurance Fund v. ReadyLink Healthcare, Inc.</i> (2020) 50 Cal.App.4th 422, 449.) The Cross-Complaint does not allege that Cross-Complainant and Cross-Defendant had financial transactions and does not allege a debt arising from a history of financial transactions with Cross-Defendant.
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Fourth Cause of Action: Quantum Meruit

The elements of a cause of action for quantum meruit are: (1) the plaintiff acted pursuant to an express or implied request for services by the defendant, and (2) the services rendered benefited the defendant. (*Day v. Alta Bates Medical Center* (2002) 98 Cal.App.4th 243, 248.)

The Cross-Complaint fails to allege any express or implied request for services by Cross-Defendant. (See X-Compl. ¶53.)

Fifth Cause of Action: Conversion

A cause of action for conversion requires allegations of “(1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property right; and (3) damages.” (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 650.)

Here, Cross-Complainant’s cause of action for conversion is based upon allegations that Cross-Defendant interfered with its rights in the subject vehicle arising from its lien by demanding release of the vehicle without satisfaction of the lien. (See X-Compl. ¶¶60-61.) As discussed above, the allegations in the Cross-Complaint and judicially noticeable facts show that Cross-Complainant’s lien was not valid, so no cause of action for conversion can be maintained based upon any rights Cross-Complainant claims in the subject vehicle by virtue of a lien pursuant to Civil Code section 3068.1.

Sixth Cause of Action: Declaratory Relief

To sufficiently plead a claim for declaratory relief, Plaintiffs must allege “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546.)

Moreover, Code of Civil Procedure section 1060 governs actions for declaratory relief. Section 1060 provides that declaratory relief is proper “in cases of actual controversy relating to the legal rights and duties of the respective parties.” However, Code of Civil Procedure section 1061 provides that the court “may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.” A determination that declaratory

		relief is not necessary or proper may be made on demurrer. (See <i>Fox Paine & Co. v. Twin City Fire Ins. Co.</i> (2024) 104 Cal.App.5th 1034, review granted 12/11/24 (Case No. S287404) [cited pursuant to Cal Rules of Court, rule 8.1115, subd. (e)].) Here, declaratory relief is not necessary, as the court has found, based upon the allegations of the pleadings and judicially noticeable facts that Cross-Defendant’s declaration of opposition was timely within the framework provided in Civil Code section 3071. <u>Leave to Amend</u> Since the Cross-Complaint was Cross-Complainant’s first attempt to plead a viable cause of action, the Court shall grant Cross-Complainant leave to amend. Motion to Strike Portions of Cross-Complaint In light of the foregoing, the motion to strike is DENIED as MOOT. Cross-Defendant may renew its motion to strike directed against any amended Cross-Complaint that may be subsequently filed. Cross-Defendant shall provide notice.
9	Rupp vs. Rambacher 2024-01400738	Motion for Summary Judgment and/or Adjudication Defendants Thomas E. Rambacher, DPM and Podiatry Hotline Inc.’s Motion for Summary Judgment is DENIED. “A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).) “A [defendant] has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., §437c, subdivision (p)(2).) Once that burden is met, the burden shifts to Plaintiff “to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) “[F]rom commencement to conclusion, the party moving for